

COLLECTIVE BARGAINING AGREEMENT

between

**Public Service Employees Local Union 572
LIUNA, a/w AFL-CIO**

AND

Leumas Residential

AND

ProDyn

**EFFECTIVE SEPTEMBER 23, 2023
EXPIRES SEPTEMBER 23, 2026**

TABLE OF CONTENTS

PREAMBLE.....	- 1 -
ARTICLE 1 - RECOGNITION.....	- 1 -
ARTICLE 2 - PROBATIONARY PERIOD	- 1 -
ARTICLE 3 - DUES CHECK-OFF	- 2 -
ARTICLE 4 - MANAGEMENT RIGHTS.....	- 2 -
ARTICLE 5 - HIRING OF NEW EMPLOYEES	- 3 -
ARTICLE 6 - SENIORITY.....	- 3 -
ARTICLE 7 - STEWARD REPRESENTATION.....	- 4 -
ARTICLE 8 - TRANSFER, LAY-OFF AND RECALL	- 5 -
ARTICLE 9 - HOURS OF WORK, LUNCH, SIGN-IN/OUT, CALLBACK AND OVERTIME	5 -
ARTICLE 10 - ACCESS/UNION REPRESENTATION/COMMUNICATION.....	- 6 -
ARTICLE 11 - WORK RULES	- 7 -
ARTICLE 12 - DISCHARGE	- 7 -
ARTICLE 13 - GRIEVANCE AND ARBITRATION	- 8 -
ARTICLE 14 - NO STRIKES/LOCK OUT.....	- 9 -
ARTICLE 15 - WAGES.....	- 10 -
ARTICLE 16 - VACATION	- 10 -
ARTICLE 17 - SICK LEAVE.....	- 10 -
ARTICLE 18 - HOLIDAYS.....	- 11 -
ARTICLE 19 - LEAVES OF ABSENCE	- 11 -
ARTICLE 20 - BEREAVEMENT LEAVE	- 12 -
ARTICLE 21 - JURY/COURT DUTY.....	- 13 -
ARTICLE 22 - BENEFIT ALLOTMENT	- 13 -
ARTICLE 23 - CLOTHING AND EQUIPMENT.....	- 13 -
ARTICLE 24 - SAFETY REQUIREMENTS	- 13 -
ARTICLE 25 - PROMOTIONS	- 14 -
ARTICLE 26 - REDUCTION IN FORCE.....	- 14 -
ARTICLE 27 - PHYSICAL EXAMINATIONS AND DRUG TESTING	- 14 -
ARTICLE 28 - SERVICE CONTRACT PROCEDURES AND OBLIGATIONS	- 15 -
ARTICLE 29 - PARTIAL INVALIDITY	- 15 -
ARTICLE 30 - WAIVER, ENTIRE AGREEMENT AND AMENDMENTS	- 15 -
ARTICLE 31 - SPANISH LANGUAGE CBA	- 15 -
ARTICLE 32 - DURATION OF AGREEMENT	- 16 -

PREAMBLE

This Agreement has been entered into effective September 23, 2023, by and between Leumas Residential and ProDyn ("the Company") and the Public Service Employees Local Union 572 and its affiliates Laborers' International Union of North America, AFL-CIO ("the Union").

ARTICLE 1 - RECOGNITION

The Employer recognizes the Union as the sole and exclusive representative for the purposes of collective bargaining with respect to rates of pay, wages, hours, and all other conditions of employment for all full-time and regular part-time employees performing landscaping, grounds maintenance, pest control and snow removal services for the Company at Naval Support Facility, Indian Head, Maryland, Naval Support Facility Dahlgren, Virginia, Naval Research Laboratory, Pomonkey, Maryland, and Pumpkin Neck, Virginia, excluding all clerical, administrative, professional, and managerial employees, and guards and supervisors as defined by the National Labor Relations Act.

ARTICLE 2 - PROBATIONARY PERIOD

Section 1. GENERAL CONDITIONS

- (a). Newly hired employees shall be regarded as probationary for a period of ninety (90) calendar days, commencing on the first day of actual work.
- (b). Time on leave, whether with or without pay, is not qualifying service for the completion of the probationary period.
- (c). During the probationary period the employees' work performance and general suitability for employment will be evaluated.

Section 2. EXTENSION OF PROBATIONARY PERIOD

The Employer may choose to extend an employee's probationary period. The Employer will notify the Union and such an extension shall be for a specific period of time not to exceed thirty (30) days, but only as an extension of initial probation and prior to the expiration of initial probation.

Section 3. COMPLETION OF PROBATION

Upon successful completion of the probationary period, the employee shall be placed on the seniority list and given a seniority date which is retroactive to the employee's most recent date of hire.

Section 4. RELEASE DURING PROBATIONARY PERIOD

Prior to the completion of the probationary period, an employee may be released at the sole discretion of the Employer. Actions taken by the Employer under this provision are not subject to the grievance or arbitration procedures of the Agreement.

ARTICLE 3 - DUES CHECK-OFF

Section 1. The Employer will deduct initiation fees, union dues and financial core fees from the wages of employees who voluntarily authorize the Employer to do so on a properly executed payroll deduction card provided by the Union. Such deductions shall be made from the first paycheck of each month, or the first pay received in that month in which the employee has sufficient net earnings to cover the Union membership dues or payments. Funds deducted with a monthly summary shall be remitted to the Secretary-Treasurer of the PSE Local Union 572, by the 15th day of the month for the preceding month.

Section 2. The Union will promptly furnish to the Employer a written schedule of the Union dues, initiation fees, and financial core fees. The Union also agrees to promptly notify the Employer in writing of any changes to these amounts. Union authorization cards must be submitted prior to the fifteenth (15th) of the month preceding the date that deductions are to be made.

ARTICLE 4 - MANAGEMENT RIGHTS

Section 1. Except as modified or restricted by this Agreement, all statutory and inherent managerial rights, and functions are retained and vested exclusively in the Employer, including, but not limited to, the rights:

- a. to reprimand, suspend, discharge, or otherwise discipline Employees for cause;
- b. to determine the number of Employees to be employed and to hire Employees, determine their qualifications, and assign and direct their work;
- c. to promote, demote for just cause, layoff, recall to work;
- d. to set standards of productivity and/or the services to be rendered;
- e. to maintain the efficiency of the organization including to determine the methods, means, personnel, and facilities by which operations are conducted;
- f. to set the starting and quitting time and the number of hours and shifts to be worked;
- g. to close down, or relocate the Employer's operations or any part thereof or to expand, reduce, alter, combine, assign, or cease any job, department, operation, or service;
- h. to control and regulate the use of facilities, equipment, and other property of the Employer;
- i. to introduce new or improved research, service, materials, and equipment;
- j. to introduce new or improved methods of evaluations of products, services, and Employees;
- k. to determine the number, location and operation of departments, divisions, and all other units of the Employer.

Section 2. The Employer shall retain the sole right to suspend, discipline and discharge employees for just cause in accordance with the express and specific terms of this Agreement.

Section 3. The Employer's failure to exercise any right, prerogative, or function hereby reserved to it, or the Employer's exercise of any such right, prerogative, or function in a particular way, shall not be considered a waiver of the Employer's right to exercise such right, prerogative, or function or preclude it from exercising the same in some other way not in conflict with the express provisions of this Agreement.

Section 4. In the event of any ambiguity between this Article and any other Article of this Agreement, the terms of this Article will control.

ARTICLE 5 - HIRING OF NEW EMPLOYEES

The Company will communicate with the Union whenever the Company has hired additional employees who would be covered by this Agreement. The Company will give fair consideration on a non-discriminatory basis to all applicants for employment, regardless of membership or non-membership in the Union.

The Company will notify the Union at the end of each pay period of any new employee hired.

New hired employees: Initiation fees of \$150, effective January 1, 2024.

Returning employees: Obligation to make up for missed dues within 12 months of their return.

Dues:

September 23, 2023: \$50

September 23, 2024: \$52

September 23, 2025: \$54

ARTICLE 6 - SENIORITY

Section 1. The Employer recognizes seniority for all employees who have been continuously employed at the same location based upon the length of continuous service, with previous, present and succeeding Employers, according to the Employer's and the Union's records. Seniority, within job classification, is an important factor to be considered by the Employer in equipment assignments, shift assignments, promotions, demotions, lay-offs, and recalls after lay-offs within the unit. However, the Employer may also consider efficiency and capability.

Section 2. No employee shall acquire any seniority rights until his or her probationary period has ended.

Section 3. A break in seniority shall occur upon any of the following events:

- (a) The employee quits or retires;
- (b) The employee is discharged for just cause;
- (c) The employee is absent from work without advising the Employer within 3 days and giving reasons acceptable to the employer for such absence;
- (d) The employee fails to return to work within three (3) working days or give reason why the employee cannot return to work within 3 working days, after receipt of the Employer's notice of its intent to separate him by certified mail to the last known address of the employee as contained in the employee's official records;
- (e) The employee overstates a leave of absence or a vacation without an acceptable excuse;

- (f) The employee gives a false reason for obtaining a leave of absence;
- (g) A settlement with an employee has been made for total disability, or for any other reason if the settlement waives further employment rights with the Employer;
- (h) The employee is laid off for a continuous period of one year; or
- (i) The employee's credentials are terminated by the Government, or the employee is otherwise asked to be removed from working under the Employer's contract with the Government.

Section 4. The Employer shall supply the Union with an up-to-date seniority list every three (3) months. The Union and the Company will work together to determine each employee's seniority. If the employee disagrees with the determination agreed to by the Company and the Union, the employee shall bear the burden of providing documentation of the date of the employee's original date of employment at the location.

Sections 5. Every new employee shall be on probation period ninety (90) days and during this probationary period an employee may be dismissed for any reason. Any employee so dismissed shall not have a right to invoke the grievance and arbitration procedure of this Agreement.

ARTICLE 7 - STEWARD REPRESENTATION

The Union shall supply the Company, in writing, and shall maintain on a current basis, a complete list of all authorized stewards, (which shall not exceed two (2) at Naval Support Activity Indian Head and Naval Support Activity Dahlgren each, consisting of a primary shop steward and his alternate) together with the designation of the group of employees each is authorized to represent. In no event shall the representation of employees of processing of grievances interfere with the performance of work or the fulfillment of the Company's obligation under its Government Contract. The Company shall also be kept advised in writing by the Union of names of its officers and representatives who are authorized to act on its behalf. If the Company plans to transfer a steward, officer or representative from one shift to another, it will make reasonable effort to advise the Union thereof, at least five (5) days prior to taking such action. Subject to any regulations or requirements established by the Government, with respect of Government property, authorized agents of the Union shall have access to the Company's contract site during working hours for the purpose of adjusting disputes, investigating working conditions, and ascertaining that the Agreement is being adhered to, provided, however, that such visits shall not interfere with the performance of any employee's work or the fulfillment of the Company's obligation under its Government contract. No employee shall be discriminated against or discharged for exercising any rights under the National Labor Relations Act, as amended.

The Shop Steward shall not interfere with the management of the business or direct any work of any employee, but may advise the Company of any violations of the Agreement and also notify the employee participating therein.

Prior to leaving the work area, the Shop Steward will request permission from the supervisor. The Shop Steward will not leave his work area during rush hours. Any new employee shall be introduced to the Shop Steward or alternate, within 30 days only during in season.

ARTICLE 8 - TRANSFER, LAY-OFF AND RECALL

Section 1. Whenever it is necessary to lay off employees or in the event the Employer's contract(s) for providing grounds maintenance services for the Government is terminated, not extended or not renewed, or contract workload is decreased due to seasonal activities, the Employer may layoff regular part-time and/or full-time employees, as it deems necessary, in the following order:

- (a) Part-time employees in the inverse order of their seniority.
- (b) Should it be necessary to further reduce the full-time work force, employees shall then be laid off in the inverse order of their seniority.

Section 2. Laid-off employees may not displace employees at other [Leumas Residential](#) locations. There are no bumping rights.

Section 3. Employees who have been laid-off, or transferred to another location covered by this Agreement in lieu of layoff by reason of a reduction in the work force, will be recalled to work in the reverse order in which they were laid off or transferred. Should an employee be transferred to another location within the Employer's other sites in lieu of layoff by reason of a reduction in work force, said employee shall receive the rate of pay applicable to the position/location to which he/she is transferred.

Section 4. Laid-off employees will be recalled in accordance within this Agreement to available position within the unit before new employees are hired within 3 months of the layoff. Laid-off employees may decline recalls to openings at locations other than the one from which they were laid-off, if applicable. Laid-off employees declining recalls to their "home location" will be deemed to be voluntary termination of employment and removed from the recall list. Laid-off employees are not eligible for any compensation (other than required unemployment compensation) from the Employer, if they are deemed eligible by the agency.

Section 5. All employees on Lay-Off shall retain seniority rights for recall purposes for a period of six (6) months.

ARTICLE 9 - HOURS OF WORK, LUNCH, SIGN-IN/OUT, CALLBACK AND OVERTIME

Section 1. For the purpose of this Article, a regular workweek of forty (40) hours of work, excluding lunch periods, shall constitute a normal full-time workweek for full-time employees. The workweek is Sunday through Saturday. Employee will receive a one (1) hour lunch break, which consists of an unpaid uninterrupted period of thirty (30) minutes and a thirty (30) minute paid break. The Employer and Employee can agree to split the break as they wish. Shifts shall be scheduled at the discretion of the Employer to fulfill the needs of the Company and the Government. Nothing contained herein shall guarantee to any employee any number of hours of work per day or week. Actual time worked for the purpose of computing overtime does not include hours paid in non-work status, such as vacation pay, holiday pay, and paid leave of absence. The regular workday includes any mandated preparation time; i.e. briefings or inspections. The Company will attempt to avoid management performing bargaining unit assignments and will do

so only in emergency situations but reserves the right to do so where required by business needs. The determination of whether business needs require the use of management personnel is left to the Company's sole discretion.

Section 2. An overtime rate of one and one-half (1.5) of an employee's base pay (exclusive of health and welfare and other fringe additions to pay) shall be paid for all hours worked in excess of forty (40) hours in a work week. Actual time worked for the purpose of computing overtime does not include hours paid but not worked (such as vacation, holiday or paid leave of absence).

Section 3. Overtime pay shall not be pyramided, compounded or paid twice for the same hours worked.

Section 4. Hours of work for employees shall be determined by the Employer to ensure orderly and efficient operations. Failure to accept assignments when not excused by the supervisor will be grounds for discipline up to and including discharge.

Section 5. The Employer may reschedule an employee's meal period during the workday, in cases of emergency, when operational needs preclude relieving the employee of work-related duties. The Employer will make its best effort not reschedule meal periods within the first two or last two hours of the shift. Employees may accept the reschedule at any time for their personal convenience.

Section 6. It is the sole discretion of the employer to schedule mandatory overtime hours. Volunteers will be taken first. If there are not enough volunteers, the mandatory overtime will be required in reverse order of seniority. The Union will be notified in advance.

Section 7. Before layoffs are implemented, the Company will allow Employees to sign a list, to volunteer to be considered for recall. A copy will be provided to the Union. The list will rotate, and go by seniority. If there are not enough volunteers on the recall list, there shall be a mandatory recall in reverse seniority.

ARTICLE 10 - ACCESS/UNION REPRESENTATION/COMMUNICATION

Section 1. The Client (Naval Support Facilities and Naval Research Laboratory Field Sites) will have the right to enforce access rules.

Section 2. Representatives of the Union or their designees shall be permitted access to the Employer's offices at the sites at a mutually agreeable time, upon prior notification to the Employer, subject to the Government security restrictions in effect, for assisting in the adjustment of grievances.

Section 3. There shall be no Union business conducted during an employee's work time.

Section 4. The Union is responsible for providing written notification to the Employer's Corporate Representative as to the individuals officially designated to act as representatives of the Union within ten calendar days of their appointment.

Section 5. A Union representative shall perform his/her assigned duties and shall not leave his/her post during work hours to conduct Union business without the expressed approval of Site Management.

Section 6. Upon request, the Employer shall provide the Union with an alphabetized list of all employees. This list will be provided electronically. For the purposes of establishing a seniority list, copies shall be posted at all facilities.

ARTICLE 11 - WORK RULES

Section 1. The Employer has the sole right to promulgate, supplement, alter, modify, amend, and rescind work rules. For the purpose of this Article, work rules are defined as rules promulgated by the Employer, which regulate employees relative to and affecting their employment.

Section 2. When the Employer makes changes or withdraws a work rule, it shall provide the Union with a copy of such rule, change or notice of withdrawal at least 15 calendar days before the date of implementation. The Union shall have the right to submit comments on and meet with representatives designated by the Employer to discuss such rule, change or withdrawal on or before the date of implementation, provided that the meeting, if requested by the Union, shall take place at least 7 days prior to implementation. This right does not include the right to bargain over such rule, change or withdrawal.

Section 3. The Company will ensure that all employees have signed for and received a copy of all work rules, standards of conduct, and the Naval Support Facilities' and Naval Research Laboratories' policies, procedures and standards to which an employee will be expected to adhere.

ARTICLE 12 - DISCHARGE

Section 1. Just Cause: The Company shall not issue written discipline to, suspend without pay, suspend without pay pending decision on termination or discharge a bargaining unit employee, after the probationary period ends, without just cause. Should there be any dispute between the Company and the Union concerning the existence of just cause for a discharge, such dispute shall be adjusted as a grievance in accordance with the terms of this Agreement.

Section 2. The Employer may discharge its Employees for just cause which shall include documented unsatisfactory performance, insubordination, improper treatment of clients/vendors, dishonesty, excessive absenteeism, intoxication, possession of or use of illegal drugs, violent conduct, harassment, theft, malicious or careless destruction of company, customer or fellow employee property, sleeping on the job, or any conduct which adversely affects the operation of any one or more of the Employer's job site. The said Employee shall not be permitted on the premises of the Employer from the date of the aforesaid discharge.

Section 3. Progressive Discipline: Other than a discharge for a reason identified in Section 2, the Employer shall impose progressive discipline in the following manner:

- a. First Offense within any consecutive 12-month period: Verbal warning with written documentation;

- b. Second Offense within any consecutive 12-month period: Written warning and counseling;
- c. Third Offense within any consecutive 12-month period: Dismissal or three (3) day suspension without pay, at the Employer's discretion; and
- d. Fourth Offense within any consecutive 12-month period: Dismissal.

ARTICLE 13 - GRIEVANCE AND ARBITRATION

Section 1. General: A grievance is defined as any disagreement between the Parties concerning the application or interpretation of the provisions of this Agreement.

All grievances shall be processed as set forth below. Grievances shall be submitted in writing and be stated with reasonable specificity. Grievances must specify the Agreement provision allegedly violated, the name of the grievant, the date the grievance arose, a brief description of the event or circumstances leading to the grievance (including time and place if appropriate), name of the grievant's immediate supervisor, any known witnesses and relief or remedy requested. If any of the matters set forth above are omitted in the initial statement of the grievance, such omission, if based on good cause, shall not constitute grounds for dismissing or denying the grievance.

Section 2. Process:

Step 1. The Union shall file a grievance with Operations Manager within fifteen (15) calendar days from the time that the grievance arose, or 15 calendar days from when the grievant(s) or the Union became aware (or should have become aware) of the facts giving rise to the grievance. The grievance shall be signed by the Union Representative who files it. The Union Representative shall submit a copy of the grievance to Operations Manager. Operations Manager or other member of management identified by the Company shall respond to the grievance in writing within 15 calendar days after receipt of the grievance.

Step 2. If the grievance is not resolved at Step 1, the Union may appeal the grievance by filing a written appeal attaching the grievance and written response with Operations Manager or other individual identified by the Company for receipt of grievances under this Agreement.

A grievance regarding lost time discipline, discharge or a group of employees working in more than one department or shift shall commence at this Step 2, and it shall be filed within the same time limit for filing grievances as set forth in Step 1.

Either Party may make a written request for a meeting with the other Party to discuss the grievance at this Step, but such meeting shall not extend the time period provided in this procedure. A request for a meeting shall be made to the designated Company representative at the time the appeal is made who will coordinate the meeting. A Union Representative shall be included in all grievance meetings, and all such meetings involving a Union Representative shall take place during the Union Representative's non-working time unless attendance during working time is authorized in advance by the designated Company representative.

The Company shall provide its written response to the appeal of the grievance no later than fifteen (15) calendar days after the grievance meeting, or if no meeting is requested, then fifteen (15) calendar days after the appeal of the grievance in Step 2.

Step 3. Arbitration Demand. If a settlement is not effected in the grievance procedure outlined above, and the grievance is subject to arbitration under this Agreement, then the Union may file a demand for arbitration with the Company and Federal Mediation and Conciliation Service (FMCS) in accordance with this Article. Such demand shall be filed within twenty (20) calendar days of the delivery of the written response in Step 2. If the Union does not file the demand for arbitration within this time period, the grievance shall be deemed waived and shall not be subject to further discussion or appeal through arbitration.

Section 3. Arbitration shall be taken before an arbitrator mutually agreed upon between the parties. Should the Parties fail to agree on an arbitrator the matter shall be heard before the FMCS. The Parties will strike and rank arbitrators from the FMCS panels until mutual agreement is reached.

Section 4. The arbitrator so selected shall not have the jurisdiction or authority to add to, take from, nullify or modify any of the terms of this Agreement.

The arbitrator's award shall be final and binding upon the Parties.

Section 5. Unless it is mutually agreed otherwise, each dispute which is subject to arbitration shall be heard by a separate arbitrator at a separate hearing, except that grievances arising out of an identical set of facts or the same incidents may be heard together by written agreement of the Parties.

Section 6. Each party shall bear its own costs in connection with the arbitration, including the cost of any transcript. The fee and expense of the arbitrator shall be split equally between the Parties. Each Party shall pay its own attorney's fees, if applicable.

Section 7. If back pay or other make whole relief is awarded, the arbitrator shall reduce such back pay or make whole award by any earnings, compensation, benefits or remuneration received by the employee from any employment source whatsoever during the period involved.

Section 8. The time deadlines and limits in this Article shall be extended only by a written agreement between the Company and the Union, which shall be non-precedent setting.

ARTICLE 14 - NO STRIKES/LOCK OUT

Section 1. So long as this Agreement is in effect, the Union will not cause, nor permit its members to cause, nor will any member of the Union take part in, any strike, including a sympathy strike, slowdown, stoppage of work, refusal to cross a picket line, planned inefficiency or any other curtailment of work or restriction or interference with the Employer's or Government's operations. Nor will the Union authorize or sanction the same. Upon hearing of any unauthorized strike, slowdown, stoppage of work, refusal to cross a picket line, planned inefficiency or any other curtailment of work or restriction or interference with the operation of the Employer and/or the

Government as set forth above, the Union shall take the necessary steps to avert or bring such activity to a prompt termination.

Section 2. Any employee who violates the proscriptions of this provision will be subject to disciplinary action, to include termination. Furthermore, it is agreed and understood that in addition to other remedies, the provisions of this Article may be judicially enforced including specific performance by way of injunctive relief.

Section 3. During the life of this Agreement, the Employer shall not lock out any employees covered hereunder.

ARTICLE 15 - WAGES

- (a) Effective September 23, 2023, all covered employees, who have completed the probationary period, shall receive an increase in their hourly wage as provided in Addendum "A" attached to the Agreement.

ARTICLE 16 - VACATION

Each employee of the Company who has been continuously employed at the locations covered by this Agreement shall receive paid vacations, as follows:

- Two (2) weeks vacation after one (1) year
- Three (3) weeks vacation after five (5) years
- Four (4) weeks vacation after fifteen (15) years

Employees who desire to take time off for vacation must notify the Project Manager in writing 30 days prior to their expected time off. The Employer reserves the right to deny vacation time off requests should it effect the efficiency of the operation. Any vacation pay due to an employee shall be paid at the anniversary date. The vacation shall be calculated by the average hours over the last twelve (12) months of employment. Unused vacation time will not be paid out at the employee's termination of employment since vacation allotments are paid on the anniversary date.

ARTICLE 17 - SICK LEAVE

"Sick Leave" is defined as absence of an employee from work by reason of verified illness or accident, which is non-work connected and not compensable under the Worker's Compensation Laws.

Eligibility and Benefits

An employee who has completed his probationary period and is absent from work is eligible to receive paid sick leave at his regular rate of pay in accordance with the following schedule:

Non-probationary employees accrue one (1) hour of paid sick leave for every thirty (30) hours worked with a maximum of seven (7) sick days per year.

Sick leave shall be paid on a current basis, if substantiated by the employee. Sick leave due to an employee shall be paid at the time said employee is off due to illness. Employees may be required to provide medical proof of illness certifying any absence in excess of three (3) days.

Sick days will not be paid out at the employee's termination of employment.

Employees off work due to physical or mental illness, injury or medical condition, obtaining diagnosis, care, or preventive care from health care provider; caring for a child, parent, spouse, domestic partner, or any other individual related by blood and whose association with the employee is the equivalent of a family relationship also has any condition or need for diagnosis, care, or preventive care; and/or for situations of domestic violence, sexual assault or stalking, will notify their manager, by phone, regarding their shift at the location that they work at least twenty-four (24) hours in advance of the shift on which they will return to work, for purpose of working scheduling.

ARTICLE 18 - HOLIDAYS

Section 1. The company holidays are:

- a. New Year's Day
- b. Martin Luther King Day
- c. Presidents' Day
- d. Memorial Day
- e. Independence Day
- f. Juneteenth
- g. Labor Day
- h. Columbus Day
- i. Veterans' Day
- j. Thanksgiving Day
- k. Christmas Day

So long as the employee works at least once in the same workweek as the holiday, employees not working on the holiday will be paid for the holiday at their straight time hourly rate. The holiday hours to be paid will be calculated by taking the average daily hours worked over the 10 working days prior to the holiday.

ARTICLE 19 - LEAVES OF ABSENCE

Section 1. Unpaid personal leaves of absences not to exceed one hundred eighty (180) calendar days may be granted at the sole discretion of the Employer without loss of seniority.

Section 2. Employees who are covered by the FMLA or other local law or ordinance shall be eligible for leave in accordance with such law. Leaves granted under the FMLA shall be concurrent with leaves otherwise covered by this Article, and the Employer may require employees taking FMLA covered leave to utilize paid time off as a part of the leave taken.

Section 3. An employee shall be granted a Military Leave of Absence, as required by federal law, for the time spent in full-time active duty in the Armed Forces of the United States. The period of such leave, and reinstatement upon the expiration of such leave, shall be determined in accordance with applicable Federal Laws in effect at the time of such leave.

Section 4. A leave of absence shall be processed in the following manner:

(a) Any request for a leave of absence shall be submitted in writing at least ten (10) working days prior to the date such leave shall take effect, except in case of emergency, and shall include:

- (1) the reasons for such leave;
- (2) the effective date of such leave; and
- (3) the estimated date of return to work.

(b) The written request for a leave of absence shall be submitted to the employee's direct supervisor for review and disposition.

(c) If the request for a leave of absence is approved, a copy of the approved leave of absence will be given to the employee involved.

(d) Extensions of a leave of absence may be granted at the sole discretion of the Employer upon written request by the employee within ten (10) working days prior to the expiration of the leave. Extensions so granted shall not total more than thirty (30) calendar days.

Section 5. All leaves of absences shall be subject to the following general provisions:

(a) Seniority shall accumulate during the period of any approved leave of absence subject to the seniority article of this Agreement.

(b) Any employee who receives a leave of absence for a definite period of time shall not be entitled to return to work until the expiration of such leave unless the Employer elects to waive this provision.

(c) Such leaves shall be without payroll compensation or benefits unless the employee is eligible for paid sick leave days under the provisions of this Agreement, and then those benefits shall be the sole source of payment to the employees.

(d) Leaves covered by the Family and Medical Leave Act ("FMLA"), for employees eligible for said leaves, shall be administered in a manner consistent with said Act, as determined by the Employer, and the Employer may require the employee to use accrued vacation and sick days, and other leave benefits under this Agreement, concurrent with the leaves granted under the FMLA, as allowed by the Act.

ARTICLE 20 - BEREAVEMENT LEAVE

Employees will be entitled to up to three (3) days, plus one extra day when traveling over 200 miles with proof of travel by means of receipt(s), of paid leave due to a death of the Employee's spouse, domestic partner, child, stepchild, parent, sibling, grandparent, grandchild, father- or mother-in-law, son- or daughter-in-law, or brother- or sister-in-law. To receive paid/unpaid bereavement leave, the Employee must previously be scheduled to work the hours for which the Employee seeks the paid/unpaid bereavement leave. This leave must be taken within seven calendar days of the event triggering the leave for which the Employee seeks the paid/unpaid bereavement leave. The Employee may be required to provide proof of death and relationship to deceased before bereavement leave is paid.

ARTICLE 21 – JURY/COURT DUTY

Jury/Court Duty: An employee called for jury duty will be allowed the necessary time off to render such civic service. The Employee will be paid the difference between jury duty pay and his/her regular wages for the periods of jury duty coinciding with the employee's scheduled work hours. Employees must submit proof of their service of jury duty before leave for such jury duty will be paid.

ARTICLE 22 – BENEFIT ALLOTMENT

Section 1. Health & Welfare. Health & Welfare will be paid on all hours paid up to 40 hours per workweek as set forth in Addendum A into the employees' check.

Section 2. 401(K) Contribution. The Company shall contribute into the 401(k) plan as the Baltimore-Washington Construction and Public Employees Laborers' District Council Defined Contribution Retirement Plan the hourly rate specified on the addendum A, for all straight time hours worked for each and every employee covered by this Agreement up to a maximum of forty (40) hours per week.

ARTICLE 23 - CLOTHING AND EQUIPMENT

Employees who are required by the Company to wear uniforms, special clothing or to have special equipment, will be furnished those items at no cost to the employee. The Company will initially issue five wash and wear uniforms at the inception of employment to be maintained by the employee. The employee must wear clean and un-torn uniforms. Uniforms will be replaced under normal wear and tear. When the employee leaves the company, the uniforms must be returned; if the uniform is not returned, the cost of the uniform may be deducted from the employee's pay.

Company will provide ponchos and rain gear onsite for employees to use during inclement weather. Ponchos and rain gear are to be returned at the end of each day.

ARTICLE 24 - SAFETY REQUIREMENTS

In order to provide safety controls for protection to the life and health of employees and prevention of damage to property, supplies, and equipment, the Employee shall comply with all applicable safety requirements established by the Company or the Government, or both. In the event that any health and safety concerns are raised by the members, the Union after consulting with management may request the assistance on how to address the particular concern.

ARTICLE 25 - PROMOTIONS

When the Company determines that a vacancy exists in any classification in the bargaining unit and supervisory positions, a notice of the vacancy shall be posted for a period of two (2) working days on the Union bulletin board and in any other places the Company normally posts such notices. Any employee in the bargaining unit shall be permitted to sign the notice indicating his/her desire to be selected for the position.

In effecting a promotion, the Employer will first give consideration to employees of the unit and selection will be made therefrom unless an outside applicant is better qualified, in management's judgment.

The employment record or applications of all candidates will be reviewed with full regard given to each candidate's skills, abilities and experience. In making a selection for a position within the bargaining unit, when all other factors are equal in management's judgment, the Company agrees to select the most senior employee.

ARTICLE 26 - REDUCTION IN FORCE

The Company will notify the Union at least two weeks prior to any reduction in force, including such details with respect thereto as are available. If there are not enough volunteers on the recall list, there shall be a mandatory recall in reverse seniority. When an employee is discharged or laid off, he shall be paid at his next scheduled payday, provided, however, the Company may deduct Union dues, pursuant this Agreement, that are owing as of the date of termination. When the Company wishes to recall laid off employees, it shall attempt to contact such employee(s) by telephone, it shall telephone the Local Union, and it shall mail a letter to the employee's last known address. The employee shall be required to respond to and be available for work within forty-eight (48) hours of the above procedure. All employees are required to keep the Company informed of their current address and telephone number.

ARTICLE 27 - PHYSICAL EXAMINATIONS AND DRUG TESTING

Section 1. The Employer may require, as a condition of initial and continued employment, that applicants and employees submit to physical examinations to determine fitness for duty. Such examinations may include laboratory tests to detect the presence of alcohol or illicit drugs. Such examinations may be administered before the commencement of work, after layoff; or after leaves of absence in excess of thirty calendar days, after on-the-job accidents, and upon reasonable suspicion of drug or alcohol use or impairment. The Employer agrees to bear the cost of the initial pre-employment physical examination, all required annual physical examinations and for any follow-up tests or examinations related to such physical examinations if required as the result of the directed physical examination. The Employer may designate the physician or clinic, at its discretion.

Section 2. Any drug testing conducted by the Employer shall be conducted pursuant to the Employer's substance abuse policy provided that any testing and/or examinations conducted pursuant to such policy shall be paid for by the Employer and that any testing and/or examinations shall be conducted during working time, and provided further that, if any testing and/or

examinations are required outside of an employee's normal working time, the time spent for such testing and/or examinations shall be considered work time and be paid for time spent. Upon notification by the Company the Employee must submit for testing immediately during normal working hours. Failure to comply with the random drug screening will be grounds for immediate termination of employment. An employee shall be terminated immediately in the event s/he refuses to submit to a drug test or in the event the test detects the presence of alcohol or illegal drugs. If requested by an employee, a Union Representative/Steward will be called to observe drug testing for probable cause, post-accident and random testing.

ARTICLE 28 - SERVICE CONTRACT PROCEDURES AND OBLIGATIONS

Section 1. The parties recognize that they are providing a service to the United States Government. Therefore, the terms of this agreement are subject to the directives of the Government, and, except as provided herein, there shall be no recourse against the Employer with regard to its actions taken to comply with those directives. In the event a directive necessitates a deviation from the obligations or procedures contained in this Agreement, the Union may request that the parties hereto meet and confer with regard to the effects, if any, of the deviation necessitated by the Government's directive.

Section 2. A copy of any notice demanding that an employee be removed from the location at the request of the Government shall also be provided to the Union.

Section 3. Notwithstanding any provision of this Agreement, to the extent the Government requires compliance with specific procedures (e.g., height and weight, safety, security clearances, medical examinations, weapons proficiency testing, uniformed appearance standards, staffing determinations, assignments, work rules, etc.), or the requirements of the Service Contract Act, the Employer will comply with those requirements. The Employer will notify the Union of the change and give an opportunity to negotiate the effects of the change before implementing.

ARTICLE 29 - PARTIAL INVALIDITY

If any provision of this Agreement or any application of this Agreement to any employee or group of employees shall be determined to be contrary to law, then such provision or application shall not be deemed valid and subsisting except to the extent permitted by law, but all other provisions or applications shall continue in full force and effect.

ARTICLE 30 - WAIVER, ENTIRE AGREEMENT AND AMENDMENTS

Section 1. This Agreement constitutes the full and complete agreement between the Employer and the Union.

Section 2. This Agreement can only be modified or be re-negotiated by the express, written and signed agreement of both parties, to address only specific article(s) of concern. The concern(s) will be included in the signed agreement.

ARTICLE 31 – SPANISH LANGUAGE CBA

The Union and Company shall bear an equal share of the cost of providing Spanish versions of the CBA to Spanish-speaking employees.

ARTICLE 32 - DURATION OF AGREEMENT

Section 1. This Agreement shall remain in full force and effect upon ratification by the bargaining unit and shall expire September 23, 2026, with the provision that should either party desire to terminate, change, or amend this Agreement or any provision thereof, it shall give written notice to the other party not less than thirty (30) days and not more than ninety (90) days prior to expiration. In the event such notice is given, the existing Agreement may be continued by mutual consent of both parties until an Agreement is reached. This Agreement may also be changed or amended by agreement of both parties.

Section 2. If the Government cancels the contract in whole or part with the Employer then the Union and the Employer shall, upon request by the Union, meet and discuss the impact on the unit employees.

Section 3. This Agreement shall take effect upon its execution by both parties, and it supersedes any and all prior agreements or understandings between the parties.

IN WITNESS WHEREOF, the parties have caused their representatives to sign this Agreement as full acknowledgment of their intention to be bound by the Agreement.

This Agreement contains the entire understanding, undertaking, and agreement of the Company and the Union, and finally determines all matters of collective bargaining for this term. Changes to this Agreement, whether by addition, waiver, deletion, amendment, or modification, must be reduced to writing and executed by both the Company and the Union.

Public Service Employees Local Union 572
LIUNA, a/w AFL-CIO

Sonia Norquez f.

Business manager

Sonia Vasquez Lina

21 Sep 2023

Leumas Residential

Reginald D. Samuel

Reginald D. Samuel, Managing Director
09-21-2023

ProDyn

Jason M. Burton

Jason M. Burton, President
9/21/23

ADDENDUM "A"
LEUMAS RESIDENTIAL and PROLYN
AND
PUBLIC SERVICE
EMPLOYEES LOCAL UNION
572 AT
Indian Head, MD & Dahlgren, VA

ITEM	CLASSIFICATION	Current	Effective 09/23/23	Effective 09/23/24 3%	Effective 09/23/25 3%
Wages	Grounds Maintenance Worker	\$17.44	\$18.44	\$18.99	\$19.56
	Tractor Operator	\$21.37	\$22.31	\$22.98	\$23.67
	Pesticide Applicator	\$21.91	\$22.17	\$22.84	\$23.52
	Mechanic	\$22.69	\$23.29	\$23.98	\$24.70
	Crew Lead	\$18.44	\$19.45	\$20.03	\$20.64
Health & Welfare		\$4.54 per hour	\$4.57 per hour paid up to 80 hours	\$4.71 per hour paid up to 80 hours	\$4.85 per hour paid up to 80 hours
Pension	401K Pension Fund	\$0.25 per hour worked	\$0.35 per hour worked	\$0.45 per hour worked	\$0.50 per hour worked
Holidays		11 Days	11 Days	11 Days	11 Days
Vacation		2 weeks after 1 year 13 weeks after 5 years 14 weeks after 15 years	2 weeks after 1 year 3 weeks after 5 years 4 weeks after 15 years	2 weeks after 1 year 3 weeks after 5 years 4 weeks after 15 years	2 weeks after 1 year 3 weeks after 5 years 4 weeks after 15 years
Uniforms		3 initial uniforms	5 initial uniforms	5 initial uniforms	5 initial uniforms
Sick Leave		7 days per year	7 days per year	7 days per year	7 days per year
Jury Duty		Difference between jury duty pay and regular wages	Difference between jury duty pay and regular wages	Difference between jury duty pay and regular wages	Difference between jury duty pay and regular wages
Funeral Leave		3 days, plus 1 day when traveling over 200 miles with proof of receipts	3 days, plus 1 day when traveling over 200 miles with proof of receipts	3 days, plus 1 day when traveling over 200 miles with proof of receipts	3 days, plus 1 day when traveling over 200 miles with proof of receipts

The parties have negotiated and agreed to the changes in the above Addendum covering the specified wages and fringe benefits under the provisions of the established collective bargaining agreement. All other economics and fringe benefits not specifically negotiated and set out herein will remain static over the next three (3) year term of the CBA. Parties also agree to negotiate if the wages set above are below the applicable wage determination.

Public Service Employees Local Union 572
LIUNA, a/w AFL-CIO

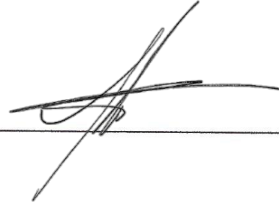
Sonia Norquez L. 9/21/23
Business manager

Leumas Residential

Reginald D. Samuel

Reginald D. Samuel, Managing Director
09-21-2023

Sonia Vasquez Luna


ProDyn

29 SEP 2023

Jason M. Burton, President
9/21/23